

ALITO, J., dissenting

vidual’s preferred pronoun a punishable offense,⁵⁹ and some colleges have similar rules.⁶⁰ After today’s decision, plaintiffs may claim that the failure to use their preferred pronoun violates one of the federal laws prohibiting sex discrimination. See *Prescott v. Rady Children’s Hospital San Diego*, 265 F. Supp. 3d 1090, 1098–1100 (SD Cal. 2017) (hospital staff’s refusal to use preferred pronoun violates ACA).⁶¹

The Court’s decision may also pressure employers to suppress any statements by employees expressing disapproval of same-sex relationships and sex reassignment procedures. Employers are already imposing such restrictions voluntarily, and after today’s decisions employers will fear that allowing employees to express their religious views on these subjects may give rise to Title VII harassment claims.

⁵⁹ See 47 N. Y. C. R. R. § 2–06(a) (2020) (stating that a “deliberate refusal to use an individual’s self-identified name, pronoun and gendered title” is a violation of N. Y. C. Admin. Code § 8–107 “where the refusal is motivated by the individual’s gender”); see also N. Y. C. Admin. Code §§ 8–107(1), (4), (5) (2020) (making it unlawful to discriminate on the basis of “gender” in employment, housing, and public accommodations); cf. D. C. Municipal Regs., tit. 4, § 801.1 (2020) (making it “unlawful . . . to discriminate . . . on the basis of . . . actual or perceived gender identity or expression” in “employment, housing, public accommodations, or educational institutions” and further proscribing “engaging in verbal . . . harassment”).

⁶⁰ See University of Minn., Equity and Access: Gender Identity, Gender Expression, Names, and Pronouns, Administrative Policy (Dec. 11, 2019), <https://policy.umn.edu/operations/genderequity> (“University members and units are expected to use the names, gender identities, and pronouns specified to them by other University members, except as legally required”); *Meriwether v. Trustees of Shawnee State Univ.*, 2020 WL 704615, *1 (SD Ohio, Feb. 12, 2020) (rejecting First Amendment challenge to university’s nondiscrimination policy brought by evangelical Christian professor who was subjected to disciplinary actions for failing to use student’s preferred pronouns).

⁶¹ Cf. Notice of Removal in *Vlaming v. West Point School Board*, No. 3:19-cv-00773 (ED Va., Oct. 22, 2019) (contending that high school teacher’s firing for failure to use student’s preferred pronouns was based on nondiscrimination policy adopted pursuant to Title IX).